



2010:KER:30849

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT :

THE HONOURABLE MR. JUSTICE C.N.RAMACHANDRAN NAIR
&
THE HONOURABLE MR. JUSTICE P.S.GOPINATHAN

FRIDAY, THE 13TH AUGUST 2010 / 22ND SRAVANA 1932

RP.No. 670 of 2010(S)

AGAINST THE JUDGEMENT/ORDER IN WPC.19253/2010 Dated 23/06/2010

REVIEW PETITIONER(S): ADDL.RESPONDENT NO.3 & RESPONDENT NO.1 & 2

1. THE CHIEF SECRETARY TO GOVERNMENT,
SECRETARIAT, THIRUVANANTHAPURAM.

2. THE EXECUTIVE ENGINEER,
PWD ROADSDIVISION, ERNAKULAM,
THRIKKAKKARA P.O., KOCHI - 682 030.

3. THE SUPERINTENDENT OF POLICE (RURAL)
ALUVA, ERNAKULAM DISTRICT.

BY GOVERNMENT PLEADER
SRI.V.C.JAMES

RESPONDENT(S): PETITIONER IN THE WPC

1. KHALID MUNDAPPILLY, MUNDAPPILLY HOUSE,
EDAYAPURAM, ALUVA, P.O.ALUVA.

ADDL. 2. BAISIL ATTIPETTY @ BASIL, A.G.,
ATTIPETTY HOUSE, NAYARAMBALAM P.O.,
ERNAKULAM DISTRICT PIN 682 509

ADDL. 3. DEJO KAPPAN, S/O. K.C. JOSEPH, AGED 52,
RESIDING AT TOC-H ROAD, VYTILA, ERNAKULAM.

ADDL. 4. DR. THANKAM JACOB, W/O. K.B. JACOB, AGED 78 YEARS,
16/475, POWER HOUSE ROAD, THOPPUMPADY, COCHIN 5

ADDL. 5. SHERRY J. THOMAS, AGED 33 YEARS, S/O. M.J. THOMAS,
ADVOCATE, HIGH COURT OF KERALA, PRESENTLY RESIDING
AT MADATHIPARAMBIL, MARADU P.O., ERNAKULAM DIST.

ADDL. 6. POONAM RAHIM, SON OF N.E. KUNJU MOHAMED,
NEDIYAPARAMBIL HOUSE, POST VIYYUR, THRISSUR 680 010

ADDL. 7. P.J. LUKA @ WILSON, SON OF P.S. JOSEPH, AGED 46,
PARAKULAM HOUSE, KARTHIKAPURAM P.O., KANNUR DIST.



ADDL. 8. LEELA MENON, D/O. NEELAKANTHAN KARTHA, AGED 78 YEARS,
RESIDING AT 11, "KALIKA" CHERUPARAMBATH ROAD,
KADAVANTHRA, ERNAKULAM.

ADDL. R2 ,R3, & R4 ARE IMPEADED AS PER ORDER ON IA NOS. 356,,
358 AND 360 OF 2010 DATED 23.7.2010

ADDL. R5 AND R6 ARE IMPEADED AS PER ORDER ON I.A.NOS. 363 & 370/2010
DATED 26.7.2010

ADDL. R7 AND R8 ARE IMPEADED AS PER ORDER ON I.A.NOS. 393 & 407/2010
DATED 30.7.2010

R1 BY ADV. SRI.T.R.RAJAN
ADDL. R2 BY ADV. SRI.A.G.BASIL (PARTY-IN-PERSON)
ADDL. R3 BY ADV. SRI.JOHNSON MANAYANI
ADDL. R4 BY ADV. SMT. PINKU H THALIATH
ADDL. R5 BY ADVS. M/S. SRI.P.T.DINESH&
SRI.C.N.SAMEER
ADDL. R6 BY ADV. SRI.KALEESWARAM RAJ
ADDL. R7 BY ADV. SRI.GEORGE MECHERIL
ADDL. R8 BY ADV. SRI.SIVAN MADATHIL

THIS REVIEW PETITION HAVING BEEN FINALLY HEARD
ON 30/07/2010, THE COURT ON 13.8.2010 PASSED THE
FOLLOWING:





2010:KER:30849

C .N. RAMACHANDRAN NAIR, &
P.S. GOPINATHAN, JJ.

R P. No. 670 of 2010
in
W. P. C. No. 19253 of 2010

Dated this the 13th day of August, 2010

ORDER

Ramachandran Nair, J.

This Review Petition is filed by the Chief Secretary to State Government along with the Executive Engineer, PWD and Superintendent of Police, Alwaye, the respondents in the WPC, for reviewing the judgment of this Court rendered in a public interest litigation filed by the first respondent as WPC No. 19253 of 2010. Petitioner in the Public Interest Litigation is a resident in the Aluva Municipality who produced photographs along with the Petition showing the temporary stage constructed and the political meeting being held on the public road blocking the traffic in front of the railway station, the transport bus-stand being located on the other side of the road opposite to the railway station. Petitioner's case was that holding of public meeting in the road in front of the railway station is a regular feature and the same causes traffic block on a regular basis and so



much so prohibitory orders should be issued against PWD and police authorities from granting permission to hold such meetings in front of the railway station. This Court on seeing the photographs, the genuineness of which is not doubted by the review petitioners, found that stage is constructed partially occupying tarred road and the space for audience is only the tarred road. It is seen that large number of people are sitting on chairs arranged in the tarred portion of the road substantially blocking the road and even preventing access of public to the railway station. After hearing petitioner's counsel we felt that public grievance should be redressed, that too urgently. Since photographs produced established blocking of road which is an illegal act, we felt that there can be no objection from State authorities against this Court passing orders to prevent the illegality. We ourselves have noticed political meetings being held in many busy junctions in the Kochi City substantially, if not fully, blocking traffic for long duration. Besides the travelling public and vehicles being held up in the road, even ambulances and vehicles carrying patients, pregnant women, and even accident victims transported for emergency medical aid to hospitals are stranded on the road on account of the traffic block



caused during public meetings held on road and road margins. Invariably roadside meetings are organised by political parties and trade unions and no official, whether police, PWD, revenue or Municipal authority shows the courage to prevent holding of public meetings on road side. Law enforcing agencies invariably turn out to be spectators, if not victims of road blocks by themselves. Considering the urgent need to protect public interest not only to provide free passage to travelling public over the roads, but by taking into account the ground realities about the conditions of the Kerala roads and the need to protect the lives of sick and accident victims being transported to hospitals and since holding of public meeting on road and road margins was found to be illegal, we allowed the Writ Petition prohibiting the State authorities from granting any permission to hold meetings on public roads and road margins. While allowing the Writ Petition, which was filed in public interest, we felt that not only the residents of Aluva but also the people of the State as a whole should get the benefit of our judgment because public meetings are held not only in front of railway station at Aluva but also in every busy junction in every town, and village in the State, blocking the road.



Since it was a public interest litigation, we felt it our duty to extend the benefit of judgment, that is prohibition against holding of public meetings on road and road margins, to the entire State so that the whole people are benefitted. In fact, the Chief Secretary to Government was impleaded only to ensure implementation of the judgment.

2. The judgment which was pronounced on 23.6.2010 was widely published in the media and in fact media reports confirm that judgment is rather implemented for the last over six weeks and several meetings initially arranged on public roadside where even Ministers were to participate were shifted and held in convenient places outside the road. Even though judgment affects mostly political parties and to some extent trade unions who hitherto were occasionally holding meetings on road side, none of the political parties or trade unions has approached this Court with any Petition to review the judgment. Under this circumstance, we have to only infer that judgment finds general acceptance with the leadership of political parties and trade unions because otherwise they could raise their grievance by filing Review Petitions before this Court. However, strangely the State has filed this Review Petition raising mostly technical objections against



the judgment, such as violation of natural justice, granting relief beyond the scope of the Writ Petition, etc. The additional 2nd respondent impleaded in the R.P. referred to Regulation 253 of the State Secretariat Manual under which only Advocate General or the Government Pleaders are entitled to handle writ cases in the High Court. According to him, the State is answerable as to why the Director General of Prosecution is engaged in a Review Petition filed against the judgment in a writ proceeding in violation of the above Regulation. However, we do not think we should consider this issue because we notice that this is only one of the peculiar features in the filing and prosecution of this Petition by the State.

3. Even though judgments rendered under Art. 226 of the Constitution can be reviewed by the High Court by virtue of the powers available under the very same Article, existence of grounds for review of the judgment are always looked into by referring to Section 114 read with Order XLVII, Rule 1 of CPC. It is a settled position that only persons aggrieved by the judgment are permitted to file Review Petition for reviewing the judgment. When we asked a specific question to the Director General of Prosecutions as to whether the



Government of Kerala or its officers have ever held any meeting in the public road or road margin or whether they propose to hold in future any meeting in public road or road margin to feel aggrieved by the judgment, the answer is in the negative thereby confirming that State has no genuine grievance in the matter. On our question as to whose interest the State is trying to protect by reviewing our judgment, the DGP does not have any definite answer except to say that political parties, cultural and religious organisations are all aggrieved. When we asked the DGP that even after wide publicity and wide debate of the judgment in visual and print media no political party, cultural or religious organisation so far has approached this Court with any review petition stating any grievance for them, he does not have any answer.

4. A similar public interest litigation reached the Supreme Court from Madras, wherein relief sought for was for a prohibition against holding of meeting at K.K. Road at Villupuram in Tamil Nadu, which was causing inconvenience to the public. Even though public interest litigation was rejected by the Madras High Court, on appeal, the Supreme Court issued orders to the State of Tamil Nadu to show cause



why orders should not be passed not to block any main street or road. Pursuant to this direction issued by the Supreme Court, the matter was referred to Council of Ministers in Tamil Nadu, which accepted the position that permission cannot be granted for holding meeting in the K.K. Road, Villupuram. In fact, based on the decision of Council of Ministers filed before the Supreme Court, the statement filed was recorded and the Supreme Court dropped the proposal to issue prohibitory orders against State authorities from granting permission to hold meeting, erect stage, etc. blocking the road vide judgment reported in K.K. ROAD MERCHANTS E.A.R.W.A.,TN V. DISTRICT COLLECTOR, T.N.,(2004) 13 SCC 61. Considering the importance of the matter, we asked the DGP whether the matter was referred to Council of Ministers, and whether review is filed based on their decision. However, there was no no such decision by Council of Ministers and the file produced before us shows that the issue is handled in a routine manner wherein the Law Department has given advice about the grounds that could be raised for filing a Review Petition, because according to them there was violation of natural justice and that blanket prohibition cannot be issued by the High Court



extending the relief prayed for in the Writ Petition to the whole of the State.

5. Even though one of the grounds urged on behalf of the State is that order is unenforceable inasmuch as if the order is enforced there is likelihood of law and order problem, the Director General of Police or the Superintendent of Police, the latter being one of the review petitioners, has not come forward with any practical difficulty in implementing the direction contained in the judgment. We have already noticed above that the judgment is followed and even implemented in the State by the police for the last one and a half months and Director General of Police has not come forward with any difficulty in implementing the judgment. When there is general acceptance of the judgment by the people, and when the Government does not have any grievance against the judgment, we do not know what prompted the Govt. to file this Review Petition. In this context, it would not be out of place to mention about the contempt case pending in this Court against an Ex-MLA of the political party which is leading the coalition Government. One of the additional respondents impleaded representing a non-Governmental organisation has, along



with his counter affidavit dated 26.7.2010, produced Annexure A1 newspaper cutting which led to the contempt proceedings against the said ex-MLA. What is stated in Annexure A1 series is that ex-MLA allegedly held a meeting on the road side in violation of the judgment, and incited the public to disobey the judgment and he described the judges who wrote the judgment as "fools". Probably the Government is dragged to the Court with the Review Petition to promote and protect the vested interest of some people.

6. In the normal course, we would have dismissed the Review Petition for the sole reason that review petitioner has no grievance. However, since WPC was disposed of without granting the time requested for by the Government Pleader for the review petitioners to file their objections, we feel Review Petition needs to be decided on merits, i.e., after hearing the objections of the State. Advocate Sri. T. R. Rajan appearing for the first respondent brought to the notice of this Court provisions of various statutes pertaining to construction and maintenance of public roads and contended that the assumption of this Court while issuing the judgment that it is illegal to hold meetings on public roads or road margins is correct and there is no provision in law



authorising holding of meeting on public road or road margin blocking the road, partially or fully. The publicity that the judgment got in the media attracted a lot of parties to this Court and several persons got impleaded in the Review Petition as additional respondents to support the judgment. The addl. respondents impleaded through I.A.Nos. 356, 358, 360, 363 of 2010 supported the judgment. The additional second respondent impleaded through I.A. No. 356 of 2010 is Sri. Basil Attipetty, an advocate of this Court. Arguing for himself, he referred specifically to the conditions of Vypeen area where only one narrow road passes through in the coastal area in the south-north direction always busy with heavy traffic and according to him the judgment is a great relief to the people of the area. He vehemently opposed the Review Petition and prayed for dismissal of the same with costs. Addl. third respondent impleaded through I.A. No. 358 of 2010 is Sri. Dejo Kappam, the Managing Trustee of Centre for Consumer Education, Pala, for whom Sri. Johnson Manayani appeared and supported the judgment. Addl. 4th respondent impleaded through I.A.No. 360 of 2010 is Dr. Thankam Jacob, who is stated to be a committed social worker and a councilor, for whom advocate Sri.



Pinku H Thaliath appeared. She also supported the judgment. Addl. 5th respondent impleaded through I.A.No. 363 of 2010 is Sri. Sherry J Thomas, who is a practicing lawyer in this Court, for whom advocate Sri. Dinesh P.T., appeared and argued in support of the judgment. Petitioner in I.A. No. 393 of 2010, who is impleaded as additional 7th respondent, not only supported the judgment but wanted this Court to extend the benefit of the judgment to the National Highways passing through Kerala. Advocate Sri. George Mecheril appeared and argued the matter. Addl. 8th respondent impleaded through I.A. No. 407 of 2010, is Leela Menon, a social worker and a journalist by profession for whom Advocate Sri. Sivan Madathil argued the matter supporting the judgment and contended that judgment is of great relief to the public. However, we have not excluded Highways from the scope of directions contained in the judgment and so much so we do not think any separate orders are required in this matter. However, counsel appearing for the addl. 6th respondent impleaded in I.A.No. 370 of 2010 contended that judgment requires atleast partial modification in review proceedings. We do not think respondent impleaded in the RP filed by the State should be permitted to challenge the judgment.



Whoever wanted to challenge the judgment filed Review Petition. So much so, we do not propose to go into the contents of the contention raised by the petitioner in I.A.No. 370 of 2010.

7. The main contention raised by the Director General of Prosecution in support of the Review Petition is that the judgment was rendered in violation of natural justice inasmuch as review petitioners were not heard. Even though WPC was disposed of without waiting for Government Pleader to get instruction from the review petitioners, it is pertinent to note that even now the instruction received by the review petitioners from the Sub Inspector of Police, Aluva Police Station, on the date on which the judgment was pronounced is not produced by the DGP appearing for the State. However, counsel appearing for the first respondent under the Right to Information Act obtained a copy of the instruction furnished by the Sub Inspector of Police for presentation before this Court, which is as follows:

Meetings organized by various political parties and others by making temporary stages in front of Railway Station (Railway Square Aluva) usually creating traffic obstructions.

The Asst. Executive Engineer, PWD Roads Division, Aluva is the authority to give sanction for making the stage at Railway Square.

Sometimes, while making stages for spublic meeting



some parties closed the way to Railway Station also. It causes obstruction to Railway passengers and others. The meeting at the railway square causes long time traffic blocks. Police have to get much more time to remove the traffic blocks.

Therefore sanction for making stages and public meetings at Railway Square, Aluva is not desirable.

The Police Officer, who has first hand information about meetings and the traffic blocks taking place in the road in front of the Railway Station has stated that it is undesirable to grant permission to hold meetings because such meetings cause long time traffic block and even entry to the Railway Station is blocked and according to him police take long time to clear traffic blocks. We are of the view that if review petitioners were heard, and they honestly produced the instruction received from the police officer, our conclusion in the judgment would not have been different, but would have been supported by materials furnished by the Sub Inspector of Police also. In other words, the instruction from the Sub Inspector of Police which is not produced by the DGP even at this stage, goes against the case of the review petitioners for reviewing the judgment.

8. In any case we proceed to consider the objections raised by the DGP serially, first one being violation of natural justice. "No one



should be condemned unheard", is the essence of principle of natural justice which is alleged to have been violated in this case. When mentioned to the DGP that we have not passed any orders against the State, and all what the Chief Secretary and Government officials are required to do was to prevent an illegality, that is holding of meetings on public road and road margins, the contention of the DGP is that State is bound to protect the fundamental rights of the people particularly political parties, religious and cultural organisations which are stated to be holding meetings on public roads and road margins. Processions may be taken out through road by religious and cultural organisations during festival season. However, they do not hold any meeting on public road. Therefore really the grievance against the judgment is only for the political parties and trade unions and we have no hesitation to hold that Government is trying to protect the interest of political parties and trade unions who do not directly want to approach this Court with any Petition. The court certainly will not be justified in denying natural justice, by assuming that the granting of opportunity will not serve any useful purpose.

9. In this regard counsel for the petitioner, Director General of



Prosecution as well as counsel appearing in the connected R.Ps. referred to judgment of the Supreme Court in VOLGA TELLIS AND OTHERS V. DELHI MUNICIPAL CORPORATION (AIR 1986 SC 180) and contended that even if no purpose will be served by giving notice to the opposite side, the same will not be ground for denying natural justice. However, in this case the denial of natural justice did not lead to any adverse orders against the State. Further what was directed was prevention of holding of meeting on public roads and road margins which was considered to be illegal by this Court. We gave a detailed hearing to the DGP to substantiate that our assumption of holding of meetings on public road and road margins as illegal which is the fundamental basis on which judgment was rendered is incorrect. The Director General of Prosecution by referring to Article 19(1)(a) and (b) contended that the right to hold meetings on public road and road margins emanate from the constitutional right of freedom of speech and expression and to assemble peacefully without arms. Counsel for the first respondent and counsel appearing for the additional respondents vehemently opposed this by stating that the fundamental rights under Article 19(1) are subject to reasonable



restriction provided by law made by the State through any legislation under Article 19(2) of the Constitution. A very important argument raised by the counsel for the respondent is that the fundamental rights of the political parties and the trade unions to assemble and hold meeting on road or road margin should be synchronised with the fundamental right guaranteed to citizens under Article 19(1)(d) to move throughout the territory of India which can be through vehicular traffic through the Highways in the State. Even though several decisions are cited by both sides, we do not think we should refer to all such decisions. However, it is worthwhile to refer to atleast some of the decisions.

10. The Honourable Supreme Court in the case of MUNICIPAL BOARD, MANGALORE V. MAHADEOJI MAHARAJ, (AIR 1965 SC 1147) held that the side lines of Highways are ordinarily included in the road for the maintenance of proper road. The court held that even the structure constructed on road side for installation of statue of Mahatma Gandhi is impermissible. In the decision in RAILWAY BOARD VS. NIRANJAN SINGH (AIR 1969 SC 966), the Supreme Court held that "there is no fundamental right for anyone to hold



meetings in Government premises. The fact that those who work in a public office can go there does not confer on them a right of holding a meeting at that office even if it be the most convenient place to do so. The fact that citizens of a country have a freedom of speech, freedom to assemble peacefully and freedom to form associations or unions does not mean that they can exercise those freedoms in whatever place they please. The exercise of those freedoms will come to an end as soon as the right of someone else intervenes". The Honourable Supreme Court in VOLGA TELLIS & OTHERS VS. DELHI MUNICIPAL CORPORATION (AIR 1986 SC 180) held that "foot paths or pavements are public properties which are intended to serve the convenience of general public. They are not laid for private use and indeed their use for a private purpose frustrates the very object for which they are carved out from portions of public streets". In the decision in HIMAT LAL SHA VS. POLICE COMMISSIONER, AHMEDABAD (AIR 1973 SC 87) also the Supreme Court held that the right to assemble under Article 19(1)(b) does not mean that the right can be exercised at any and every place. The question, therefore, to be considered is whether the roads constructed with margins is for



the public to hold meetings thereon.

11. The Director General of Prosecution does not deny the fact that the roads are not designed leaving any space for holding public meetings. On the other hand, roads are undoubtedly designed to cater to the needs of vehicles and the traveling public. If the holding of a meeting on public road or road margin is treated as a fundamental right of the persons doing it, then the same directly stands in conflict with the fundamental rights of the traveling public who are blocked and stranded on the roads. Therefore, in our view, no one has a fundamental right to assemble or hold meeting on public road or road margin which are meant only for vehicular traffic and for the traveling public.

12. The next question to be considered is whether the assumption by this court while issuing the judgment that the holding of meeting on public road or road margin as illegal, is correct or not. In this context counsel for the respondents referred to various provisions of the Indian Penal Code, particularly Sections 431 and 339. Under Section 431, whoever commits mischief by doing any act which renders or which he knows to be likely to render any public road, bridge, navigable river or



navigable channel, natural or artificial, impassable or less safe for traveling, is punishable upto five years. Similarly under Section 339, whoever voluntarily obstructs any person so as to prevent that person from proceeding in any direction in which that person has a right to proceed is said wrongfully to restrain that person which is an offence punishable under Section 341 of the Act. In other words, under these provisions the obstruction of a public road by holding meeting on or side of it leading to blocking of road and passengers who have a right to go in a particular direction amounts to offences both under Section 431 and Section 339 of the I.P.C.

13. We called upon the DGP to refer to the statutory provisions, if any, which authorise the State authorities to grant permission to hold meetings on public roads. The Kerala Highway Protection Act, 1999 is rather a recent legislation of the State. Section 3 of this Act provides for declaration by Government of any road, way or land appurtenant thereto to be a highway and classify it as a State highway or a hill highway or a major district road or any other category of road. State highways are under the control of the Highway Authority constituted under Section 4 of the Act, under which the Executive Engineer, PWD



of the area is designated as Highway authority. Section 2(f) defines "encroachment" as occupation of a highway or part thereof for purposes other than traffic and any act which causes damage to the highway. Occupation of highway which falls under the description of encroachment takes in erection of tents, pandals, arches, platforms, rostrums, hoardings, etc. Section 13 of the Act prohibits any person from occupying or continuing to occupy any highway or part of a highway for purposes other than traffic. Section 15 provides for removal of any encroachment on the roads covered by the Act. Penalty is also provided for encroachment of roads under Section 16 of the Act. Under Sections 44 and 45 the police and even Village authorities are bound to prevent encroachment of State highways and roads notified under the Act. There is no provision in the Kerala Highway Protection Act authorising any authority to grant permission to hold meeting on any road in the State covered by the statute. In fact, very strict provisions are provided for prevention and removal of encroachment of highways which includes even temporary erection of platforms or pandals for holding meetings.

14. When we asked the DGP as to whether the design of the



roads in the State provides any space or buffer zone for holding public meeting on roads and road margins, the DGP has no answer to this question and he could not point out any space left anywhere in any road side forming part of the road or road margins providing sufficient space to hold a public meeting. In other words, the State Highway Protection Act does not visualise any meeting on road or road margins under the control of the State Highway authority. Therefore our assumption, while disposing of the Writ Petition, that it is illegal to permit holding of meeting on public road, or road margin is right in respect of all the highways under the control of the State Govt. which constitute the main road network in the State.

15. Protection and maintenance of remaining roads in the State are covered by Kerala Municipalities Act, and Kerala Panchayatraj Act. So far as the provisions of the Municipalities Act are concerned, Section 364 of the Act prohibits obstruction by any person over streets by way of construction of wall, fence, and the like. Section 367 (3) requires the Secretary to remove encroachments. It states that where the Secretary is satisfied that any road or public street including footpath, if any, thereof belonging to the Municipality or vested in it or



otherwise is encroached upon by any person in any form, either temporarily or permanently so as to cause obstruction or hindrance or inconvenience to traffic and users of the street, the Secretary may summarily evict such encroachments and may seize and dispose of any belonging or article that may be found on such road or street and no person shall be entitled to claim compensation for any action taken by the Secretary. What is clear from the above provision is that road is essentially meant for travelling public and therefore no meeting whatsoever affecting the smooth traffic could be permitted.

16. Even though the DGP referred to Section 368(2) of the Act which authorises the Municipality to grant licence for temporary erection of pandals and other structures in a public street vested in the Municipality or in any other public place the control of which is vested in the Municipality, Section 368(4) states that no licence under sub-section (1) or a lease under sub-section (3) shall be granted if the construction or occupation is likely to be injurious to health or cause public inconvenience or otherwise materially interfere with the use of the road as such. This provision read with Section 367(3) makes it clear that if permission granted will materially interfere with use of



the road, which is traffic, then no such permission can be granted. In fact the Sub Inspector's report which was the instruction in the WPC is against the review petitioner, and according to the Sub Inspector of Police, Alwaye Police Station, meetings led to not only traffic block, but also obstruction for entry to Railway Station, which is one of the important railway stations in the State. Therefore going by the instruction, which is suppressed by the review petitioners in the Review Petition, but produced by the first respondent after obtaining a copy of it from the review petitioners under the Right to Information Act, there is no justification to permit holding of meetings on public road or road margins in front of the railway station which is in Aluva Municipality. The resultant position is that provisions of the Municipalities Act do not entitle the Municipality to grant any permission to hold meetings on public roads and road margins under its control because if granted, the same will obstruct free flow of traffic.

17. So far as the provisions of the Panchayathraj Act are concerned, Section 2(xxxv) defines "public road" as meaning any street, road, square, court, alley, passage, cart-track, footpath or riding



path, over which the public have right of way, whether a thoroughfare or not. Section 220 prohibits construction in or over public roads including any encroachment whatsoever, whether permanent or temporary, in or over any public road. Section 252 of the Act casts a duty on the police officers to assist the Panchayath Secretary to discharge his duties, which includes removal of obstruction on the public road. Even though the provisions of the National Highways Act, 1956 are referred to, we have not been shown any provision authorising permission being granted for holding public meeting on the National highway or road margin. In fact, as against normal width of the National Highway under the norms of the National Highway Authority, which is 45 metres, what is sought for in Kerala is for reduction of the width to 30 metres because of lack of space in Kerala for widening the existing Highways. Even though we do not wish to enter into this controversy as to whether the State authorities have to follow the norms in regard to width of the National Highways, we are constrained to observe that hundreds of cases pending and reaching this Court on a routine basis relate to demolition of shops on the highway side for widening of the road which establish beyond any doubt the



deplorable condition of the narrow roads in the State. Though we asked a specific question to the DGP as to whether the State can show any space left on any roadside in Kerala to hold a public meeting, his case is there may be space available in some areas. However, it is common knowledge that wherever vacant space was there on the roadside, the same is occupied by encroachers for residence as well as for business purposes and their encroachments later get regularised. From the above discussion we are unable to conclude that the judgment suffers from any mistake about our assumption that meetings on public roads and road margins is impermissible in law.

18. As already pointed out no legislation pertaining to construction and maintenance of roads in the State permits holding of meeting on public road or road margins. We do not think fundamental right to freedom of speech and expression or to assemble guaranteed under Art. 19(1)(a) and (b) entitles anyone to hold meeting on public roads or road margins which are meant for vehicular traffic and for pedestrians. In fact, State itself concedes that public meetings are held only in busy junctions on roadside and justification for the same stated in the Review Petition is as follows:



With the limited resources and time at the avail of the common man in the country in his hectic life, this will be possible only by organizing speeches, discussions etc. at the places and spots where people usually gather and are likely to assemble. Roads, road sides and road margins are invariably such places where the common man in the country, the villager, the farmer, the peasant, etc. assemble and flock to.

What is clear from the above is that political parties hold meetings in busy junctions on roadside because they can make the people available there who wait for buses, trains and those who come for shopping, etc., as audience and force speeches on them. Therefore the purpose of going to the public road junctions for holding meeting is not because there is no other convenient place other than the road to hold meeting but for audience or to make up for the shortage of people for the meeting. To our specific question about fundamental rights of the people conferred under Art. 19(1)(d) who are on travel or who have come for peaceful shopping without being disturbed by speeches forced on them by political parties holding meeting, the DGP has no answer. In other words, the case of the State is that wherever people gather on roadside for their purposes political leaders have right to make them audience and force their speeches on them. The freedom of



speech of somebody should not interfere with the freedom of peaceful living or movement of others. When somebody's freedom of speech and assembly are considered, we see no reason why fundamental rights of people assembled in every junction should not be protected by this Court because those who do not want to listen speeches in meeting should be spared from it and speeches should not be forced on them disturbing their peaceful living. The position is the same in so far as shop owners, officials in charge of railway stations, bus-stand, etc. are concerned, because not only they are disturbed in their work but even announcements made in the railway stations and bus-stand will not be heard by the passengers on account of the disturbance and sounds produced in meetings held by the side of the railway stations and bus-stands as in the *Alwaye* case which was considered in the WPC by us. We are of the view that holding of public meeting and the forceful inclusion of public assembled for their purposes at junctions as audience is not only a violation of law and human rights but is a public nuisance which the Executive Magistrate is bound to remove under Section 133 of the Cr.P.C. Lastly we have to consider the most important fundamental right, i.e., right to life guaranteed under Art. 21



of the Constitution of India of the sick, injured and the pregnant women, who while under transport are held up in traffic blocks leading to delay in getting medical aid and consequent death. A Full Bench of this Court in the decision reported in BHARATH KUMAR V. STATE OF KERALA, (1997) 2 K.L.T. 287 (FB) held that processions taken out on public roads should not lead to blocking of road. In the appeal against the said judgment, the Supreme Court in COMMUNIST PARTY OF INDIA V. BHARATH KUMAR, (1997) 2 K.L.T. 1007 (SC) held that "there cannot be any doubt that the fundamental rights of the people as a whole cannot be subservient to the claims of fundamental right of an individual or only a section of the people". Therefore the fundamental rights claimed by review petitioners and their beneficiaries should yield to this more important right, i.e., right to life under Art. 21 and right of travel and free movement under Art. 19(1)(d) of the citizens of this country.

19. We have in our judgment suggested that public meetings should be held in Stadiums, Maidans, or in Auditoriums. It was our view that since Kerala has over 12000 schools and every School has a playground and since most of the schools are non-residential which



remain closed on holidays, meetings by political parties or cultural or religious organisations could be held in the school grounds on holidays. The contention of the DGP is that auditoriums are expensive and in many cases organisers do not have the fund to pay rent. We do not think this is a justification to violate law and hold meeting on public road or road margins. It is a well known fact that Kerala has 990 Panchayaths and large number of Panchayaths and Municipalities have community halls. Besides playgrounds of over 12000 schools, large number of public community halls and privately owned auditoriums are available for holding meetings. We feel what is required is a change in the mind set of leaders of political parties and trade unions and if they are willing to recognise the present condition of traffic in Kerala roads we are sure they will discontinue the practice of holding meeting on roadside hitherto followed.

20. The next ground raised by the DGP is that this Court has travelled beyond the scope of Writ Petition inasmuch as the prayer sought for by the petitioner was to prohibit meetings on the roadside in front of the Aluva Railway Station, and this Court suo motu extended the benefit to the whole State of Kerala by issuing prohibitory orders



against holding of meeting on any road in the State. Counsel has relied on the decisions of the Supreme Court in *STATE OF KARNATAKA V. REGISTRAR GENERAL, KARNATAKA HIGH COURT*, A.I.R. 2000 S.C. 2626 and *DIVISIONAL MANAGER, ARAVALI GOLF CLUB V. CHANDER HASS*, (2008) 1 SCC 683. However, we find that these decisions are rendered in inter-party litigation whereas the case disposed of by us is a public interest litigation. The Supreme Court has in the decision in *BANDHUA MUKTI MOREHA V. UNION OF INDIA*, A.I.R. 1984 S.C. 802 held as follows:

When the Court entertains public interest litigation, it does not do so in a cavilling spirit or in a confrontational mood or with a view to tilting at executive authority or seeking to usurp it, but its attempt is only to ensure observance of social and economic rescue programmes, legislative as well as executive, framed for the benefit of the have-nots and the handicapped and to protect them against violation of their basic human rights, which is also the constitutional obligation of the executive. The Court is thus merely assisting in the realisation of the constitutional objectives.

The second round direction issued by the Supreme Court in the famous *Delhi Traffic Management* case to control pollution in *M.C. MEHTA V. UNION OF INDIA*, (1998) 1 SCC 676 is as follows:

We direct the civic authorities to take necessary steps to



remove immediately all encroachments - temporary or permanent - on roads and pavements, which affect the smooth flow of traffic or obstruct the way of pedestrians. Stray cattle and other similar obstructions would also have to be similarly dealt with.

The wide powers of the higher Courts in PIL cases is well recognised and it is therefore the duty of this Court to protect the right of the people of the State as a whole. So far as the subject matter of WPC is concerned, we have already referred to the report of the Sub Inspector of Police, which was not considered by us while disposing of the Writ Petition, and which completely supports the case of the writ petitioner that there is heavy obstruction to vehicular traffic during meetings and even police take long time to control the situation. If the Government's stand that this Court should have limited the prohibitory order against holding of meetings only for the road in front of the Aluva Railway Station, then a person who leaves Aluva without any obstruction can be blocked on the road at Kalamassery in another meeting. Therefore if prohibition of holding of meeting in Aluva cannot be objected to by the State in view of the report of the Sub Inspector of Police produced by the first respondent after obtaining it on application under Right to Information Act, State has no right to object against the judgment being



extended to the whole people of the State that is covering all roads in the State. We therefore reject this contention as well.

21. One other ground raised for the State is that High Court has no authority to issue total prohibitory orders and what could be done is only regulation which the statutory authorities are exercising while granting permission. In this context the additional respondents impleaded have referred to the Division Bench decision of this Court in *SANKARANARAYANAN V. STATE*, A.I.R. 1986 Ker. 82 wherein this Court held that the right guaranteed to assemble peacefully and without arms does not authorise anyone to insist that he has a fundamental right to conduct a procession or a demonstration on populous urban roads without any control or regulation. In fact on behalf of the State, the Advocate General at that time stated that it will be desirable to have a legislation regulating the use of public road for various purposes. The State has not made any legislation for the last 25 years for regulation on use of roads other than for traffic. In the judgment we have taken note of the conditions of the Kerala roads and the heavy traffic. Even though data has been furnished on various matters, State has not controverted the observations in the judgment



that State has only two lane roads for traffic and after providing space for vehicles to pass through in opposite directions, there is no space for the people to hold meeting on public road and road margins. Therefore probably the Legislature and the Govt. feel that there was no space in the road or road margin other than for use by vehicles and by pedestrians for grant of permission to hold meetings or for any other purpose. Therefore the contention of the State that meetings could be permitted with restrictions has no basis.

22. The Director General of Prosecutions has heavily relied on Section 19 of the Kerala Police Act, 1960 whereunder permission can be granted subject to certain conditions for holding public assemblies and processions and meetings in streets. However, counsel for the first respondent has referred to Section 29 of the said Act which makes it the duty of the police officers to prevent any accident or danger to the public. Clause (m) specifically authorises the police to regulate and control the traffic in the streets to prevent obstruction therein and to the best of his ability prevent the infraction of any rule or order made under this Act or under any other law for the time being in force for observance by the public in or near the streets.



23. Counsel for the review petitioners also relied on the decision of the Supreme Court in HIMAT LAL SHA's case reported in AIR 1973 SC 87. Based on the said decision, the contention of the State is that Court cannot take away the right of the people by prohibiting holding of meetings on public streets. However, we find that in the judgment the issue raised and decided was constitutional validity of the provisions of the Bombay Police Act, which authorises prior permission from the Commissioner of Police for holding meetings on public places and public streets. The Court while upholding the validity of the provision held that regulatory measures are permissible. It may be noted that the decision was rendered 37 years back that too in the context of wide roads with low density of vehicles, and still it was within the powers of the Police Commissioner to decline permission for public meetings on streets, which provision was upheld by the Supreme Court. It is pertinent to note that Supreme Court specifically held that right to assemble under article 19(1)(b) of the Constitution does not mean that the right can be exercised at any and every place. There used to be a time when children were safely playing foot ball on the road. However, now even for short distance people send their



children to Schools in school buses, basically to ensure safety of children from dangerous traffic on road. We are of the view that Section 19 of the Police Act which is fifty year old now stands in conflict with the provisions of Kerala Highways Protection Act and the provisions of Municipalities Act and Panchayathraj Act which are fairly new legislations which do not confer power on any authority to grant permission to hold meetings on road and road margins which are essentially meant for vehicular traffic and for use by pedestrians. The State does not have a case that holding of meeting will not affect the traffic at least partially, which means that while holding meeting at least one side traffic will be held up and the alternate passage of vehicles will lead to inordinate delay for passengers to reach their destination, especially women office-goers and students who will reach home very late if not in the night on account of their being held up in traffic blocks. In fact, any such block on the road, even temporary, in our view is wrongful restraint within the meaning of Section 341 of the IPC and therefore any permission granted for holding meetings on roads and road margins leading to partial obstruction of traffic amounts to commission of an offence punishable under the IPC. As already



stated by us time has changed and vehicle numbers have multiplied beyond the carrying capacity of the road system and roads are not expanded. Therefore under the current situation, Section 19 of the Kerala Police Act should be treated as having become redundant or at least inoperative.

24. At our request, the DGP as well as one of the respondents furnished statistics with regard to roads in the State, the number of vehicles and the accidents taking place. The figures furnished show that in 1975 the State had only 1.19 lakh vehicles whereas in 2005 the State had 31.22 lakhs of vehicles. However by 2010 it has reached nearly 54 lakhs (exactly 53.976 lakhs). Even though total length of the road is stated to be 2 lakhs KMs. the State has no claim that anywhere on any roadside, space is available for holding public meeting without traffic being blocked at least partially. The average number of accidents in the State is 10 per day and the average per day deaths in accident is above 10. Besides death of around 3700 to 3900 people on an average every year, around 25,000 people are seriously injured every year in the accidents and another 16,000-odd suffer minor injuries. Going by the statistics we are of the view that the humble



advice given by the Sub Inspector of Police, Alwaye that it is undesirable to permit meeting on the road should be the law in the whole State.

25. One of the additional respondents impleaded filed I.A. No. 388 of 2010 producing a newspaper cutting and details about accident that happened years back in Bharanganam in which 13 people were run over and killed and 50 injured by a vehicle ploughing into procession. He has also stated that similar accident had happened in Pothanikkad also killing several people. It is strange that inspite of all these tragedies and deplorable condition of the roads, and the heavy traffic, the State insists on permitting meetings on roads and road margins blocking the roads and exposing to risk the life of people assembled on the roadside to dangerous traffic. The additional respondent impleaded has also furnished details of increase in number of vehicles on an average in the Ernakulam District alone which registered 65,000 vehicles last year. Reports show the tremendous increase in vehicle number and Kerala is one of the largest consumers of automobiles. Traffic snag and traffic grid blocks are regular phenomenon in the Ernakulam City and the people going to Airports and Railway Stations



are also held up and cases of their missing flights and trains are not infrequent. We have already discussed about the sick people, pregnant women, and injured in accidents being taken to hospitals and on account of road blocks and delay in getting medical aid some may die. We therefore feel it will be unjust not to extend the benefit granted under the judgment to the whole people of the State. We therefore do not find any merit in the Review Petition. In the normal course, we would have ordered heavy costs to the State for filing this Review Petition which in our view is anti-people. However, we are of the view that granting costs against the State itself is against public interest because it is the public money that is utilised for paying the costs in litigation. If at all costs is to be ordered, we have to identify the person responsible and make him liable to pay costs individually. Since we find that this is not a litigation in the interest of people or for the State, and is a case of misuse of Government machinery, we do not propose to venture to identify the people behind it.

The Review Petition is therefore dismissed.

(C.N.RAMACHANDRAN NAIR)
Judge

**GOPINATHAN, J.**

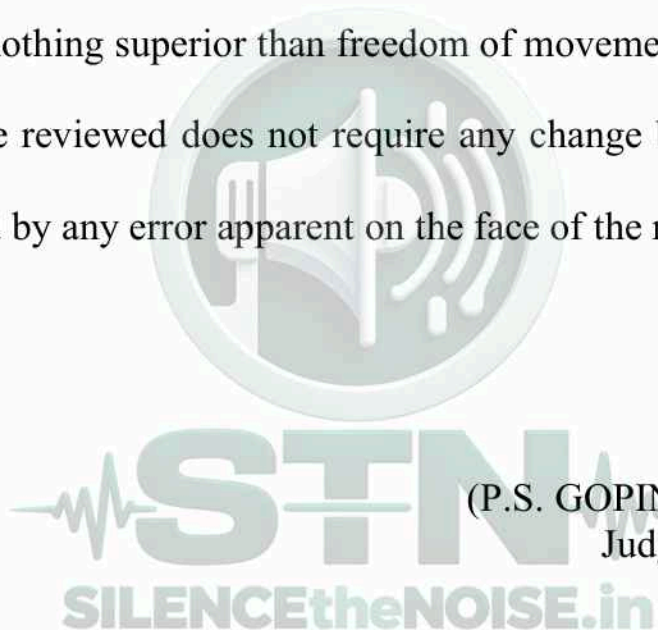
I fully endorse the reasonings given above by learned brother for dismissing the Review Petition. I may add that we are very much aware that well-merited criticism, expression of opinion, formulation of public opinion, public discussions, interactions with various groups, demonstrations, especially relating to wrong policies of those who are in power, practice of corruption, nepotism, etc., are very essential for the healthy survival of democratic set up and for that purpose, meetings could not be avoid. We have due regard for those who are arranging meetings and dedicated to the public cause. But while arranging meetings, we have to see that at no cost, it shall violate the fundamental rights of others, especially the freedom of movement. If we accept the argument of the learned Director General of Prosecutions, absolute freedom shall be given for conducting meeting on road and road margins. The learned DGP has no case that, in our State any meeting on road or road margin can be held without obstructing traffic or movement of pedestrians. He has no case that in any part of the State, any such road or it's margin is set apart for



holding meetings. Therefore, it is to be held that no road or road margin is available in our State to conduct public meeting without curtailing the freedom of movement of passengers and pedestrians. We do not find any reason to curtail the freedom of movement of passengers and pedestrians and then to allow some organised groups to conduct meetings on public road or road margin. Right to conduct meeting is nothing superior than freedom of movement. The judgment sought to be reviewed does not require any change because it is in no way vitiated by any error apparent on the face of the record.

(P.S. GOPINATHAN)
Judge.

kk





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